

SCHEDULED AND TRIBAL AREAS

Article 244 | Fifth Schedule | Sixth Schedule | PESA | FRA | Cases

01 CONCEPT AND VOCABULARY

- 1 Part X uses differentiated governance for land, culture, voice and self-rule.
- 2 Article 244(1): Fifth Schedule outside Assam, Meghalaya, Tripura, Mizoram.
- 3 Article 244(2): Sixth Schedule tribal areas in those four States.
- 4 Article 244A: Parliament may form an autonomous State within Assam.
- 5 Scheduled Area status, tribal-area status and Article 342 ST status differ.
- 6 Answer line: asymmetry serves substantive equality but remains reviewable.

02 FIFTH SCHEDULE TERRITORY

- L Only territory covered by a Presidential paragraph 6 order is scheduled.
- R The Schedule excludes the four Sixth Schedule States from its Article 244(1) field.
- L Official criteria guide: tribal preponderance, compactness, viable unit, backwardness.
- R Do not freeze district counts without a dated Presidential-order audit.
- L Criteria do not self-execute; an order creates or changes legal status.
- R Trap: an ST population does not automatically make an area Scheduled.

03 FIFTH EXECUTIVE CHAIN

- 1 State executive power continues in the Scheduled Area.
- 2 Governor reports annually or whenever the President requires.
- 3 Union executive power extends to directions on administration.
- 4 No automatic Union takeover; no local body assumes total administration.
- 5 Article 339 adds commission and essential-welfare-scheme direction routes.
- 6 Article 275(1) adds constitutional grants; finance is not proof of devolution.

- 4

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04

TAC, REGULATIONS AND AMENDMENT

- TAC: not more than 20; about 3/4 ST Assembly representatives; shortfall rule.

Function: advice on welfare/advancement matters referred by Governor.

Governor may exclude/modify Acts and make peace-and-good-government regulations.
- Fields: tribal land transfer, land allotment and money-lending.

Consult TAC where it exists; regulation needs Presidential assent.

Paragraph 7: Parliament amends Fifth Schedule by ordinary law, not Article 368.

05

SIXTH TERRITORY AND INSTITUTIONS

- 1 Scope: Assam, Meghalaya, Tripura and Mizoram only.

2 Governor organises/reorganises autonomous districts and regions.

3 Different tribes within a district may receive autonomous regions.
- 4 Ordinary council: up to 30; up to 4 nominated; remainder elected.

5 Bodoland: up to 46 = 40 elected + 6 nominated; do not universalise.

6 A constitutional ADC is not a statutory hill council or Article 371 committee.

06

ASSAM-SPECIFIC DEPTH AND ARTICLE 244A

- L Paragraph 3A: additional powers for Karbi Anglong and Dima Hasao/NCHAC.

R It may create a legislature, Council of Ministers or both.
- L Paragraph 3B: enlarged subject allocation for Bodoland Territorial Council.

R Existing councils are not automatically autonomous States.
- L Twenty-second Amendment 1969 inserted Article 244A for Assam.

R Trap: BTC != TAC != statutory council != Article 244A State.

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07 COUNCIL POWERS

1 Legislative: land, non-reserved forests, water, shifting cultivation and custom.

2 Ordinary council law has no effect until Governor assent.

3 Executive: schools, dispensaries, markets, ferries, fisheries and roads.

4 Judicial: village/council courts for specified tribal-party matters.

5 Fiscal: land revenue, listed taxes and District/Regional Funds.

6 Paragraph 10 licences non-tribal traders/money-lenders under bounded rules.

08 ROYALTIES, LAW FILTERS AND CHECKS

Paragraph 9: agreed mineral royalty share; Governor decides share disputes.

Royalty != ownership, consent or clearance.

Assam 12; Meghalaya 12A; Tripura 12AA; Mizoram 12B differ.

Paragraph 14 commission examines administration and council-made law.

Paragraph 15 permits reasoned suspension for safety/public order.

Paragraph 16 supplies dissolution and temporary supersession/assumption routes.

09 PESA 1996

1 Applies only to Fifth Schedule Scheduled Areas; not Sixth Schedule councils.

2 Village may be habitation, hamlet or customary group of habitations.

3 Approve plans; identify beneficiaries; certify utilisation.

4 Consult for acquisition/R&R; prior recommendation for specified minor minerals.

5 State law endows MFP, markets, credit, intoxicants, restoration and local control.

6 Exact verb and institutional level decide the legal effect.

10 PRA AND CASE LAW

